



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council

From: Jeanie Shrednik, PLA, Parks and Greenway Planner

Subject: Grant of Utility Easement between the City of Cheyenne and the Cheyenne Board of Public Utilities on city owned property situated in the S½ of Section 35, Township 14 North, range 66 West of the 6th P.M., Laramie County

Date: October 22, 2024

Background:

This item is approval of 6,363 +/- SF utility easement granted to the Cheyenne Board of Public Utilities. The requested easement is located on city land purchased for future Greenway and completion of this task will allow us to obtain final approval for the Sun Valley to Kiwanis Park Greenway Connector final construction documents.

Enclosures:

Easement Document and Exhibit

UTILITY EASEMENT

KNOW ALL MEN BY THESE PRESENTS that the undersigned, the City of Cheyenne, a municipal corporation of the State of Wyoming whose address is 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City"), hereinafter referred to as "Grantor," in consideration of the sum of Ten Dollars and other good and valuable consideration, the receipt of which is hereby acknowledged, and the further consideration of performance of the covenants and agreements by the City of Cheyenne, Wyoming ("City"), a Municipal Corporation, by and through its Board of Public Utilities ("Board"), its successors and assigns, hereinafter referred to as "Grantee," as hereinafter set out and expressed, hereby grants, bargains, sells and conveys to the Grantee, a permanent and exclusive easement ("Easement") to lay, construct, maintain, operate, remove, and replace the Board's utility infrastructure, and appurtenances thereto, including any necessary equipment, on, over, through and across certain lands, situate in Laramie County, State of Wyoming, described as follows:

A forty (40) foot wide permanent utility easement being situated in the S½ of Section 35, Township 14 North, range 66 West of the 6th P.M., Laramie County, said easement extends twenty (20) feet to each side of the following described centerline:

Beginning at a point on the South line of Sun Valley 17th Filing, from which the Southwest corner of said Section 35 bears S76°22'43"W, a distance of 2567.36 feet, thence S34°16'37"E, a distance of 159.09 feet to a point on the North line of Union Pacific Railroad right of way and said easement there terminates.

Wyoming, being more particularly described as follows: *See Exhibit A attached hereto.*

See Exhibit A attached hereto.

TO HAVE AND HOLD unto said Grantee so long as the Board's utility infrastructure and appurtenances thereto (collectively "Facilities") shall be maintained, together with the right of ingress to and egress from said premises for the purpose of surveying, geotechnical soil investigation, constructing, operating, inspecting, repairing, altering, maintaining and replacing said Facilities, or the removal thereof in whole or in part, at the will of the Grantee, it being the intention of the parties hereto that the Grantor is hereby granting the uses herein specified without divesting the Grantor of the right to enjoy the above-described premises, subject only to the rights of the Grantee to use the same for the purposes herein expressed.

As further consideration of this agreement, the Grantor herein agrees as follows:

1. The Grantor shall not construct or place any structure or building, tree, woody plant or nursery stock, whether temporary or permanent, of any kind or nature on the Easement. Any such structure or item placed on the Easement may be removed by the Grantee without liability for damages arising there from. Grantor may otherwise use the Easement area as long as such use does not interfere with Grantee's use.

As a further consideration of this agreement, the Grantee herein agrees as follows:

1. That Grantee will bury all Facilities pipelines laid upon said land to a sufficient depth so as not to interfere with the cultivation of the soil.

2. That Grantee will replace or rebuild any and all unusual or excessive damage to the easement property which shall be occasioned by the operation and maintenance of said Facilities under and through the above-described premises.

3. Grantee, following the installation, maintenance or removal of the Facilities, shall restore the surface of the Easement and any constructed improvements to, as near as practicable, the condition of the surface and the constructed improvements prior to said installation or maintenance.

4. If Grantor requires relocation of the Facilities, Grantee agrees to relocate the Facilities provided that Grantor pays for the relocation of the Facilities, provides a suitable alternate location for such Facilities, and grants the necessary easement rights at the new location upon the same terms and conditions herein provided.

Said Grantee has selected the route for said Facilities over and through said premises, and shall have the right to cut and remove any brush or trees and remove other obstructions along the route of such Facilities. On completion of construction, the Easement shall be for construction, reconstruction, operation, installation, use, repair, replacement, upkeep, monitoring, and maintenance of the Facilities.

It is further understood and agreed that this agreement shall run with the land and shall inure to the benefit of, and be binding upon the legal representatives, heirs, devisees, successors and assigns of the respective parties, and by the execution and acknowledgment thereof, Grantors jointly and severally waive their homestead rights to the above described lands so far as the same may be affected by this agreement.

[THIS SPACE INTENTIONALLY LEFT BLANK]

IN WITNESS WHEREOF, we have hereunto set our hands this _____ day of _____, 2024.

Signed and delivered in the presence of:

GRANTOR: CITY OF CHEYENNE, WYOMING

By: _____ Date _____
Patrick Collins, Mayor

(SEAL)

Attest:

BY: _____
Kristina F. Jones, City Clerk

STATE OF WYOMING)
) SS.
COUNTY OF LARAMIE)

Before me, a Notary Public in and for the state and county aforesaid, personally appeared Patrick Collins, with whom I am personally acquainted, and who, upon oath, acknowledged that (s)he is the Mayor of the City of Cheyenne, and that (s)he executed the foregoing instrument for the purposes therein contained, by signing their name as such officer.

Witness my hand and official seal at office in the state and county aforesaid, this ____ day of _____, 2024.

Notary Public, Laramie County, Wyoming

My commission expires: _____

GRANTEE: BOARD OF PUBLIC UTILITIES

By:

Director,
Board of Public Utilities of the City of
Cheyenne

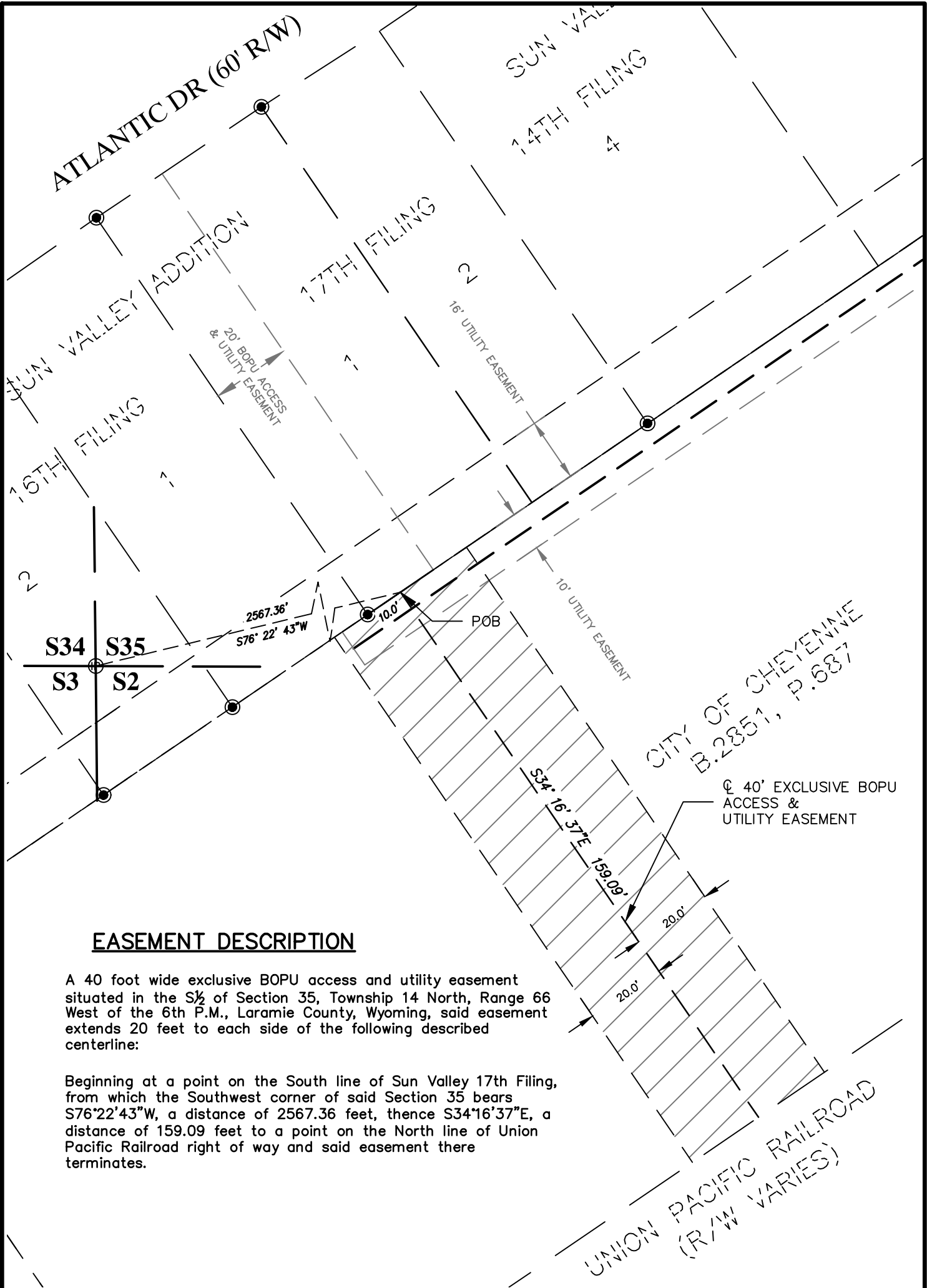
STATE OF WYOMING)
) ss.
COUNTY OF LARAMIE)

Before me, a Notary Public in and for the state and county aforesaid, personally appeared _____, with whom I am personally acquainted, and who, upon oath, acknowledged that he/she is the Director of the Board of Public Utilities of the City of Cheyenne, and that he/she executed the foregoing instrument for the purposes therein contained, by signing his/her name as such officer.

Witness my hand and official seal at office in the state and county aforesaid, this _____ day of _____, 2024.

Notary Public

My commission expires: _____



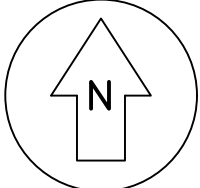
EASEMENT DESCRIPTION

A 40 foot wide exclusive BOPU access and utility easement situated in the S½ of Section 35, Township 14 North, Range 66 West of the 6th P.M., Laramie County, Wyoming, said easement extends 20 feet to each side of the following described centerline:

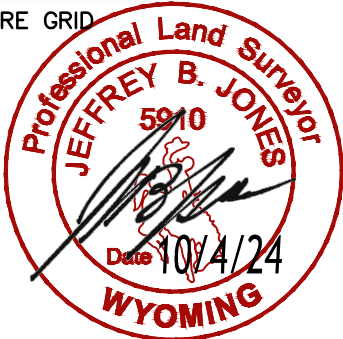
Beginning at a point on the South line of Sun Valley 17th Filing, from which the Southwest corner of said Section 35 bears S76°22'43"W, a distance of 2567.36 feet, thence S34°16'37"E, a distance of 159.09 feet to a point on the North line of Union Pacific Railroad right of way and said easement there terminates.

BASIS OF BEARINGS:

WYOMING STATE PLANE COORDINATES,
EAST ZONE, NAD83-2011,
US SURVEY FEET, DISTANCES ARE GRID
DISTANCES.



0 30'
Scale: 1"=30'



REVISED: 10/4/2024

23141 40' BOPU EASEMENT.DWG

**ACCESS AND UTILITY EASEMENT
SITUATED IN A
A PORTION OF THE
SOUTH HALF OF SECTION 35,
T.14N., R.66W.,
OF THE 6TH P.M.,
LARAMIE COUNTY, WYOMING**

Date prepared: SEPTEMBER, 2024



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